

26STCV09075 26STCV09075

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C08%2F07%2F2026

Source SHA-256: 999d56e5d2cdc43482ddc243247f714bd66faae7a452f5076bb026eaa7b987e5

Case Number: 26STCV09075 Hearing Date: August 7, 2026 Dept: 307

#9 TENTATIVE RULING 9:15 a.m., Friday, August 7, 2026

PHILIP

P. DELUCA v. ROBERT BISHOP, et al. [26STCV09075]

RULING ON

MOTION OF DEFENDANT LAW OFFICE OF JEROME A. CLAY FOR ATTORNEY'S FEES PURSUANT TO CCP 425.16(c)(1).

The Clay

defendant seeks to recover \$62,400 as legal fees recoverable under CCP 425.16(c)(1) because defendant prevailed, in part, in an anti-SLAPP motion.

On June

22 and 30, 2026, the Court provided tentative rulings (that became the final rulings) on the following causes of action pled in the complaint. The Clay defendants were named as defendants under the third through ninth causes of action Where the third through ninth causes are action marked with an asterisk (*) the Clay defendants prevailed; where they are marked with a hashtag (#), the Clay defendants did not prevail.

1. Breach of Contract (Fee Agreement)

2. Quantum Meruit

3. #Declaratory Relief (Validity of Attorney Lien)

4. *Breach of Fiduciary Duty

5. *Intentional Interference with
Contractual Relations

6. *Attempted Conversion

7. #Constructive Trust

8. *Civil Conspiracy

9. #Accounting

The

Clay defendants seek the sum of \$62,400 for legal fees to prepare the special motion to strike. The entire \$62,400 was incurred by Harry Gill, an attorney hired by the Clay defendants to prepare and argue the SLAPP motion. Gill's declaration provides a "break-down of specific tasks" for the work he performed, as summarized on the table below:

Gill

\$600

107.1 hours

\$64,260

The

entries do not specify how Gill's time was calculated nor whether it was documented when the legal tasks were performed or whether it was estimated at some later time. Gill's time to prepare the reply was estimated in the motion to require 40 hours. The Court does not find Gill's time records to be reliable. Gill records 18.8 hours to research and prepare a reply in support of the motion in the time period June 10 through June 12, but the opposition (to which the reply would respond) was not filed until July 22. Many entries time entries, furthermore, are "block-billed" so that the reasonableness of the specific tasks cannot be evaluated. For instance, Gill spent 7.6 hours in reviewing the complaint; and another 10.2 hours discussing the complaint with Mr. Clay; and only thereafter did Gill record 15.5 hours performing legal research.

Mr.

Gill provides only conclusory justification for his claim in having expertise in preparing special motions to strike. He provides no information about his years in practice; his experience and success in preparing special motions to strike; his opinions about the complexity presented in preparing the special motion filed in this case.

The

Clay defendants were unsuccessful in their motion in striking the declaratory relief, constructive trust, and accounting causes of action. That alone would justify a halving defendants' request for attorney's fees.

All

things considered, the Court would award the Clay defendants \$18,500 in recoverable legal fees under section 425.16(c)(1).

This

TR was emailed to counsel and posted on the Court's website on August 6, 2026 at 4:30 p.m.